

ONEMAIN FINANCIAL GROUP, LLC v NASTASIA

20CF13146

PLAINTIFF'S MOTION TO VACATE PRIOR ORDER OF DISMISSAL AND FOR ENTRY OF JUDGMENT PURSUANT TO STIPULATION OF THE PARTIES

On or about March 30, 2021, Plaintiff Onemain Financial Group ("Plaintiff") and Defendant Lacey Chauntae Natasia ("Defendant") entered into a verbal agreement for a "Stipulation for Entry of Judgment" to settle this case. (Declaration of Fanny Wan ("Wan Decl.") ¶ 3.) The agreement was reduced to writing and signed by the parties. (*Ibid*; Ex. 1.)

According to the settlement agreement, Defendant owed Plaintiff \$5,243.19, but Plaintiff would accept \$4,938.05 so long as Defendant paid \$100 monthly starting on April 20, 2021 until the debt was paid in full. (Wan Decl. ¶ 3.) Additionally, the parties agreed that so long as payments were timely made, no judgment would be entered against Defendant.

Defendant's last payment was October 12, 2021. (Wan Decl. ¶ 6, Ex. 2.) Plaintiff now moves the Court for an Order Setting Aside and Vacating its Prior Order of Dismissal and for Entry of Judgment for the amount prayed for in its complaint, less credit for payments received, plus previous court costs.

The settlement agreement contains the following language:

Should defendant default in the payment of any monthly installment, Plaintiff will be entitled to proceed with a noticed motion to enter judgment pursuant to this stipulation, to enter judgment in favor of Plaintiff and against Defendant in the full amount of the balance due as described in Paragraph 1 of this stipulation, less payments received plus court costs (including Defendant's first appearance fees and any motion filing fee, if applicable) incurred in obtaining the judgment, without further notice to Defendant being required.

The agreement further provides:

This is a judicially supervised settlement as described in and in accordance with the provisions of the California Code of Procedure §664.6. The parties expressly agree that the court shall retain jurisdiction over the parties to enforce the settlement performance in full of the terms hereof.

Pursuant to Code of Civil Procedure section 664.6:

- (a) If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.

Defendant has not filed any opposition.

The Court finds that the parties stipulated to settlement of the case and further that they stipulated to the Court retaining further jurisdiction pursuant to Code Civil Procedure section 664.6. Accordingly, as Defendant has defaulted on payments, the Court **GRANTS** plaintiff's motion.

The Clerk shall provide notice of the Ruling forthwith. The Court intends to sign the submitted Order and Judgment.

**CALIFORNIA FAIR PLAN ASSOCIATION, et al v VACASA,
LLC**

23CV46841

**PLAINTIFF'S MOTION FOR LEAVE TO FILE SECOND
AMENDED COMPLAINT**

This is a subrogation action arises from a fire-related property damage incident that occurred on or about March 22, 2022, at the residence of Plaintiff California FAIR Plan Association's ("FAIR") Insureds, Richard Quosig Jr. and Andrea Quosig (collectively "Quosigs"), located at 2324 Mokelumne Drive, Arnold, California 95223 ("Property").

Plaintiffs allege that catastrophic fire loss occurred ("fire loss incident") at the Property when a maid from Defendant Vacasa LLC ("Vacasa") used a combustible oven cleaning fluid ("cleaning fluid") in the broiler space of the cooking range ("range"). According to Plaintiffs, the cleaning fluid flowed into the vent holes in the bottom panel of the range and when the maid turned the oven on, the vapors from the cleaning fluid ignited a fire that spread causing extensive damage.

Plaintiffs filed their Complaint on July 25, 2023, then filed a First Amended Complaint ("FAC") on July 27, 2023, due to inadvertently omitting Exhibit "A" from the original filing. Defendant filed an Answer on December 15, 2023. On June 14, 2024, Defendant filed a Cross-Complaint against Electrolux Home Products, Inc. ("Electrolux"). On August 12, 2024, Electrolux filed its own Cross-Complaint against Vacasa.

Now before the Court is Plaintiffs' motion for leave to file a Second Amended Complaint ("SAC"). Plaintiffs assert that it is necessary because they failed to include the necessary facts to support their claim for Gross Negligence and the appropriate cause of action for Plaintiffs' general claim for damages under Private Nuisance.

California Code of Civil Procedure section 473(a) provides:

(1) The Court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code.